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Athens, 07-01-2025
Protocol No.: 43

DECISION 05/2025

The Hellenic Data Protection Authority (hereinafter "Authority") convened at the invitation of the President in a meeting on Tuesday, October 22, 2024, in order to examine the case referred to in the background of this document. Present were the President of the Authority, Konstantinos Menoudakos, the regular members Spyridon Vlachopoulos, Christos Kalloniatis, Aikaterini Iliadou, as well as the alternate members Dimosthenis Bougioukas, Nikolaos Libos, as rapporteur, and Maria Psalla, replacing the regular members Konstantinos Lamprinoudakis, Charalampos Anthopoulos, and Grigorios Tsolias respectively, who, although duly summoned in writing, did not attend due to impediments. Present, without voting rights, were Anastasia Kaniklidou, special scientist – auditor, as assistant rapporteur, and Irini Papageorgopoulou, employee of the administrative affairs department, as secretary.

A (hereinafter the complainant), acting on her own behalf individually but also as the exclusive custodian of her son B (minor at the time of the complaint), had submitted complaints numbered G/EIS/8137/28-11-2006 and G/EIS/4804/04-07-2007 to the Authority against the former Public Insurance Fund (hereinafter O.P.A.D), in which she complained about the unlawful and illegal processing of her personal data, her minor child's data, and the data of third parties insured with the complained organization. Specifically, in her report numbered G/EIS/8137/28-11-2006, the complainant, an employee ..., reported that O.P.A.D., in response to her request to the relevant department for a copy of the hospitalization expense report, communicated to her, in addition to the hospitalization expense reports and the corresponding payment orders concerning her, the hospitalization expense reports of other insured individuals at the Fund, thereby disclosing their personal data without their prior notification and consent. Among the data that were disclosed were not only simple personal data (name of the insured, residential address, tax identification number, requested and approved amount of hospitalization expenses) but also the corresponding budget code, which, in her opinion, identifies the type of expense, which in this case was hospitalization expense, i.e., sensitive health data.

Subsequently, in her supplementary report numbered G/EIS/4804/04-07-2007, the complainant complained that O.P.A.D. sent to ... at [service ...], copies of the findings of the Administrative Inquiry, which was conducted following her report, as well as copies of this and other reports she submitted to O.P.A.D., which contained, in her opinion, sensitive personal data of herself and her minor child, without having been previously informed about this transmission and despite the fact that she had opposed this transmission with her extrajudicial statement dated ... to O.P.A.D. Furthermore, she reported that she only became aware on ..., approximately two months after the transmission of the findings of the Administrative Inquiry and the reports to her service, of the excerpt of the minutes of the Board of Directors of O.P.A.D. numbered ... and ..., with which the decision was made to send the findings and the reports to her service.

Regarding the above complaints, the Authority initially issued its decision numbered 24/2010 (and with protocol number G/EX/2716/28-04-2010), by which: a) imposed a fine of three thousand (3,000) euros on O.P.A.D for the unlawful disclosure of sensitive personal data of the complainant and her minor child to her service in violation of Articles 4 paragraph 1, 7 paragraph 2, and 11 paragraph 3 of Law 2472/1997, b) issued a recommendation to O.P.A.D in accordance with the provisions of

Article 19 paragraph 1 subparagraph c of Law 2472/1997, hereinafter demonstrates the due diligence in the transmission to third parties of sensitive personal data of its insured individuals, which it

maintains in its records as the data controller. Subsequently, the Authority, with its decision No. 113/2013 (and with protocol No. G/EX/6010/23-09-2013), taking into account the decisions No. 4240/2010 and 1209/2011 of the Council of State, which concerned the legality of the composition of the Authority in relation to the participation of its Secretariat employees in the issuance of its decisions under the then applicable legislative framework, revoked ex officio the aforementioned decision No. 24/2010 on the grounds that when issuing the revoked decision, the Authority had convened with an unlawful composition. It also re-examined the complaints No. G/INS/8137/28-11-2006 and G/INS/4804/04-07-2007 of A against O.P.A.D. and issued its decision No. 9/2014 (and with protocol No. G/EX/412/22-01-2014). With this decision, the Authority determined, among other things, that: “3. (...) Regarding the complaints concerning the transmission of the unaltered report and the reports of the complainant from O.P.A.D. to the service of the complainant, according to the conclusions of the report and given that the report was the product of the reports-complaints of the complainant, it should have been sent unaltered along with the reports to her service, in order for her to be fully informed about any commission of a disciplinary offense due to the abusive exercise of the right to submit reports to the Administration, which is inconsistent with the off-duty behavior of a public servant. Regarding the more specific issue of her being informed by O.P.A.D. before the transmission of the report and the reports to her service, her initial notification was made by O.P.A.D. on ... with the communication of the report, which stated that her service would be informed about the abusive reports she submitted to the ΥΠΑΔ X and O.P.A.D. Moreover, the complainant, with her extrajudicial statement dated ..., submitted objections, requesting that her service not be informed. However, the further failure to announce the final decision of the Board of Directors of O.P.A.D. regarding the transmission of the report and the reports constitutes a violation of Article 11 paragraph 3 of Law 2472/1997, but is due to a reasonable mistake that the newer announcement was not mandatory because there had been a prior communication of the report with the announcement that her reports would also be transmitted to her service, and the Administration of O.P.A.D., under a legal obligation, was required to transmit the report and the reports to [the service ...], which the complainant should have reasonably expected despite her expressed objections, since one of the recommendations of the investigator conducting the EDE was to inform the service where the complainant works about the abusive manner in which she addressed the numerous reports and allegations to ΥΠΑΔ X and O.P.A.D. regarding her own official actions (...)” and, based on these considerations, 1) partially accepted the appeals of the complainant, regarding the part that concerned her not being previously informed by the Administration of O.P.A.D. about the sending of the report and her reports to her service despite her expressed objections, 2) issued a recommendation in accordance with the provisions of Article 19 paragraph 1 subparagraph c of Law 2472/1997 to the National Organization for the Provision of Health Services (“E.O.P.Y.Y”), as the universal successor of O.P.A.D., to inform, as the data controller, the data subjects before their announcement to third parties, 3) rejected the appeals as unfounded in other respects.

Subsequently, A, acting individually and as the legal representative of her son B, filed (for herself individually and also as a definitive judicial supporter of her son) the application for annulment dated ... and with filing number ... before the Council of State. On the above application, the Council of State issued its decision No. 316/2021, with which it partially annulled the decision No. 9/2014 (and with protocol No. G/EX/412/22-01-2014) of the Authority on the grounds that: “ (...) 10. Since the contested decision, to the extent that it was accepted that, for the transmission of the report of the conducted EDE to the service of the first of the applicants, in order to inform her about any commission of a disciplinary offense on her part, it was not required, according to the provisions of Articles 5 paragraph 2 subparagraph D and 7A paragraph 1 of Law 2472/1997, to obtain permission from the Authority for the Protection of Personal Data, is deemed unlawful, This is because the said transmission of the report of the EDE, which referred to the health problems faced by the second of the applicants, constituted the processing of sensitive personal data of hers, which, in principle,

It was prohibited, in accordance with the provision of Article 7 paragraph 1 of Law 2472/1997, and in the present case, none of the conditions provided for in the provision of Article 7 paragraph 2 of the

same law were met, so that the processing could be deemed lawful following the granting of permission by the Personal Data Protection Authority. Therefore, since the sensitive personal data of the second applicant could not be processed, even after obtaining permission from the Personal Data Protection Authority, the provision of Article 7A paragraph 1 of Law 2472/1997 was not applicable, according to which the data controller is exempt from the obligation to obtain permission from the Personal Data Protection Authority, provided that one of the conditions specified in this provision is met. Consequently, for this reason, the contested decision must be annulled in the aforementioned part."

Following this, in compliance with the decision No. 316/2021 of the Council of State, and following relevant requests from the complainant, the above references/complaints are reintroduced for examination, for a new lawful judgment in accordance with the reasoning of the relevant judicial decision. In this context, the Authority summoned the complainant A, individually and as the appointed legal representative of her now adult child B, pursuant to the irrevocable decision No. ... of the Single-Member Court of First Instance of Athens, and the E.O.P.Y.Y., which has become the universal successor of O.P.A.D. pursuant to Article 29 paragraph 1 of Law 3918/2011, respectively, to attend via teleconference the meeting of the Authority's Plenary on 01-10-2024, in order to discuss the aforementioned references/complaints of the complainant against O.P.A.D. following the issuance of the decision No. 316/2021 of the Council of State. In this meeting, the complainant's attorney, Mr. Georgios Papadakos (AM/DSA ...), along with the complainant A, attended and expressed their views, while on behalf of E.O.P.Y.Y., Ms. G, Director of Administrative Support, was present, and the D. Data Protection Officer of E.O.P.Y.Y. was also present during the discussion. During this meeting, both parties were granted a deadline to submit written statements.

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Subsequently, both the complainant and the respondent submitted their written statements No. Γ/ΕΙΣ/7827/10-10-2024 and No. Γ/ΕΙΣ/7874/11-10-2024, respectively, within the relevant deadline set by the President during the meeting.

The complainant, in her aforementioned statement, submitted a copy of the irrevocable decision No. ... of the Three-Member Administrative Court of Appeal of Athens, by which, after partially annulling the final decision of the Administrative Court of First Instance of Athens No. ... regarding the legality of the processing of the sensitive personal data of the complainant's son, E.O.P.Y.Y. was ordered to pay the complainant on behalf of her child the amount of ten thousand (10,000) euros with legal interest from the service of the lawsuit until full payment.

The respondent, in his aforementioned statement, noted, among other things, that almost twenty years have passed since the time of the complaint until today, during which E.O.P.Y.Y. has undertaken a series of systematic compliance actions with personal data protection legislation and the GDPR, with continuous interventions and improvements, and detailed the compliance actions taken with the GDPR. The Authority, having taken the above into account, and after examining all the elements of the file and what emerged from the hearing process before it and the statements of the parties, after hearing the rapporteur and the clarifications from the assistant rapporteur, following a thorough discussion,

CONSIDERED IN ACCORDANCE WITH THE LAW

1. Since, according to the provisions of Article 95 paragraph 5 of the Constitution, Article 1 of the executive law 3068/2002, and Article 50 paragraphs 4 and 5 of Presidential Decree 18/1989, the Administration has an obligation to comply with the annulment decisions of the Council of State. Moreover, when the Administration acts in compliance with an annulment decision of the Council of State,

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is obliged not only to consider the administrative act that was annulled as ineffective and non-existent but also to take positive actions to restore the legal status that was created in the meantime based on

the annulled act.

2.

Regulation (EU) 2016/679 (General Data Protection Regulation - GDPR), which repealed Directive 95/46/EC, came into effect on May 25, 2018. In this case, however, Law 2472/1997 is applicable since the complaint under consideration refers to the processing of personal data, which occurred prior to the implementation of the GDPR, which was in effect when the decision of the Authority was issued that was annulled by the decision No. 316/2021 of the Council of State.

3.

Since the provision of Article 2 of Law 2472/1997 defined that "For the purposes of this law, the following shall be understood as: a) 'Personal data', any information relating to the data subject b) 'Sensitive data', data concerning racial or ethnic origin, political opinions, religious or philosophical beliefs, membership in a trade union, health, social welfare, and sexual life, data related to criminal prosecutions or convictions, as well as participation in associations related to the above ... (d) 'Processing of personal data' means any operation or set of operations which is performed upon personal data, whether or not by automated means, and applies to personal data, such as collection, recording, organization, storage, alteration, retrieval, use, transmission, dissemination or otherwise making available, alignment or combination, linking, restriction (locking), erasure, destruction."

1 See Council of State 1288/2020, 3626/2010, 1016/2005, 3320/2003, 8, 2522/2002, 915/2001, etc.

2 Given that after the issuance of the annulled act, the legal regime that governed its issuance changed, for the issuance of the new act that is needed in compliance with the annulment decision, the factual circumstances and the substantive law rules in effect at the time of the issuance of the annulled act will be taken into account (Council of State 4320/1980, 1885/1987, etc., as well as Epameinondas Spiliotopoulos, Administrative Law Handbook II, p. 582 et seq.).

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4.

Since the provision of Article 4 paragraph 1 of Law 2472/1997, harmonizing, in particular, with the provisions of Articles 9A, 25 paragraph 1, and 28 of the Constitution, 8 and 7 of the Charter of Fundamental Rights of the European Union, and 6 of Directive 95/46/EC, stated that: "Personal data must be processed lawfully and fairly, and must be collected for specified, legitimate purposes and not further processed in a manner incompatible with those purposes. b) They must be adequate, relevant, and not excessive in relation to the purposes for which they are processed. (...)". These provisions established as fundamental conditions for the legality of any processing of personal data, as well as for the legality of the establishment and operation of any file, the principles of purpose limitation and data minimization in relation to the purpose of processing. Therefore, any processing of personal data that goes beyond the intended purpose and is not appropriate and necessary for achieving it is not lawful.

5.

Since Article 7 of Law 2472/1997 stated that "1. The collection and processing of sensitive personal data is prohibited. 2. By way of exception, the collection and processing of sensitive data, as well as the establishment and operation of the relevant file, is permitted after obtaining permission from the Authority when one or more of the following conditions are met: a) The data subject has given their written consent ... b) ... c) The processing concerns data that the data subject has made public or is necessary for the establishment, exercise, or defense of a right in court or before a disciplinary body. d) The processing concerns health matters and is carried out by a person professionally engaged in the provision of health services and is subject to a duty of confidentiality or relevant codes of conduct, provided that the processing is necessary for medical prevention, diagnosis, treatment, or the management of health services. e) The processing is carried out by a Public Authority and is necessary either aa) ... bb) for the needs of criminal or penitentiary policy and concerns the ascertainment of crimes, criminal convictions, or security measures or cc) for reasons of public health protection, or dd) for the exercise of public...

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tax audit or public audit of social benefits. (st) The processing is carried out exclusively for research

and scientific purposes... (z) The processing concerns data of public figures, provided that these are related to the exercise of a public office or the management of third-party interests, and is carried out exclusively for the exercise of the journalistic profession...”.

6.

Whereas, Article 7A of Law 2472/1997 stipulated that “1. The data controller is exempt from the notification obligation of Article 6 and from the obligation to obtain a license under Article 7 of this law in the following cases: (a) When the processing is carried out exclusively for purposes directly related to an employment or project relationship or with the provision of services in the public sector and is necessary for the fulfillment of obligations arising from the above relationships and the data subject has been previously informed. (b) ... (d) When the processing concerns health data and is carried out by doctors or other persons providing health services, provided that the data controller is bound by medical confidentiality or other confidentiality provided by law or a code of ethics, and the data is not transmitted or disclosed to third parties. For the application of this provision, courts and public authorities are not considered third parties, provided that the transmission or disclosure is imposed by law or a judicial decision. Legal entities or organizations providing health services, such as clinics, hospitals, health centers, rehabilitation and detoxification centers, insurance funds, and insurance companies, do not fall under the exemption of this provision.”

7.

Whereas, in the present case, from the elements of the case file, and as accepted by the decision No. 316/2021 of the Council of State, the following emerged: The first complainant, an employee of [service ...], in her applications dated ... and ... to the Public Insurance Beneficiaries Service (Υ.Π.Α.Δ.) X of O.P.A.D. stated that she received poor service from the above Service. Specifically, the complainant protested about the delay in the settlement of the special needs benefits for her minor son (the second of the complainants), who faced a chronic health problem, as well as for not being informed about the documents she was required to submit to the Ministry of Health and Social Solidarity in order for the above benefits to be settled. By decision No. ... of the Board of Directors of O.P.A.D, an internal investigation was ordered to investigate the above complaints. On ..., the Head of Υ.Π.Α.Δ. X submitted a report, which concluded that the complaints of the above were found to be unfounded. Nevertheless, by decision No. ... of the Board of Directors of O.P.A.D, a new internal investigation was ordered to investigate the aforementioned complaints. On ..., the investigator of the aforementioned internal investigation submitted his report, which reached the following conclusions: (a) the first complainant, during her transaction with Υ.Π.Α.Δ. X, was not adequately served, as there were delays and errors during the settlement process of her son's hospitalization expenses, (b) regarding the issue of the behavior of employees of Υ.Π.Α.Δ. X towards the above, it was proposed to summon specific employees for an explanation, as disciplinary offenses were established against them, and (c) it was proposed that the above Service be informed about the abusive manner in which she submitted the aforementioned reports to O.P.A.D. Additionally, the same report mentioned the chronic health problems faced by the son of the first complainant. By decision No. ... of the Board of Directors of O.P.A.D, the extrajudicial statement of the first complainant dated ... was rejected, in which she requested that her Service not be informed about the contents of the report of the aforementioned internal investigation. In execution of the above decision, O.P.A.D, with document No. ..., forwarded the report of the internal investigation to [service ...], in order to be informed about any disciplinary offense committed by it.

8.

Whereas, as determined by decision No. 316/2021 of the Council of State, the transmission of the report of the internal investigation, which referred to the health problems faced by the second complainant (the son of the first complainant), constituted the processing of sensitive personal data (health data), which, in principle, was prohibited according to the...

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Applicable in the present case, as mentioned in paragraph 2, provision 7 paragraph 1 of Law 2472/1997, in this particular instance, none of the conditions provided for in the provision of Article 7

paragraph 2 of the same law were met, so as to render the processing in question lawful following the granting of permission by the Authority. Therefore, the aforementioned reported processing of sensitive personal data of the son of the complainant contravenes the provisions of Article 4 paragraph 1 item a of Law 2472/1997, since this processing (transmission) lacks a valid legal basis, as previously mentioned.

9.

Since the Authority, taking into account the seriousness of the violation that was established and the harm caused to the second complainant (son of the first complainant), unanimously determines that a sanction must be imposed on E.O.P.Y.Y. as the data controller, as provided for in Article 21 paragraph 1 item b of Law 2472/1997, which is mentioned in the operative part of this decision and which is commensurate with the seriousness of the aforementioned violation.

FOR THESE REASONS

The Authority

a. Re-examines the petitions numbered 8137/28-11-2006 and 4804/4-7-2007 in compliance with the decision numbered 316/2021 of the Council of State, accepts these petitions insofar as they concern the transmission of the findings of the internal investigation which referred to the health problems faced by the second complainant (son of the first complainant) for the reasons mentioned in paragraph 8 of this decision.

b. Imposes on E.O.P.Y.Y. the effective, proportional, and deterrent administrative fine that is appropriate for this specific case, according to its particular circumstances, in the amount of three thousand (3,000) Euros, for the violation referred to in paragraph 8 of this decision.

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The President

The Secretary

Konstantinos Menoudakos

Irini Papageorgopoulou